

claim as a matter of law. (*Cf. Cottle v. Superior Court* (1992) 3 Cal.App.4th 1367, 1377; *Weiss v. Chevron, U.S.A., Inc.* (1988) 204 Cal.App.3d 1094, 1098-1099; *Johnson v. Banducci* (1963) 212 Cal.App.2d 254, 260; *see also Bauguess v. Paine* (1978) 22 Cal.3d 626, 635.)

However, when the trial court grants a summary judgment motion on a ground of law not explicitly tendered by the moving party, due process of law requires that the party opposing the motion must be provided an opportunity to respond to the ground of law identified by the court and must be given a chance to show there is a triable issue of fact material to said ground of law.

Otherwise, a party which could have shown a triable issue of material fact put in issue by the complaint or answer but neglected to do so because the point was not asserted by the moving party as a ground for summary judgment would be deprived unjustly of the chance to demonstrate the existence of a triable issue of material fact which requires the process of trial.

(*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 70-71; *County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 325 citing *Juge* with approval; *Lynch v. Peter & Associates etc.* (2024) 104 Cal.App.5th 1181, 1196 recognizing *Juge*'s viability.)

Conclusion

Based on the above, the Court continues the hearing on Defendant's MSJ to allow for additional briefing on the validity of the Contract. The briefing schedule is as follows:

- Defendant's opening papers – due on or before Friday, March 6. (10 pages max.)
- Plaintiff's opposition papers – due on or before Friday, March 20. (10 pages max.)
- Defendant's reply papers – due on or before Friday, March 27. (5 pages max.)

The hearing is continued until **Friday, April 10, 2026**. The briefing is limited to the existence of a valid and enforceable contract.

2. 9:00 AM CASE NUMBER: C22-02691
CASE NAME: DUNCAN MILLER VS. THOMAS MAMPALAM, MD
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS 1ST AMENDED COMPLAINT**
FILED BY: MAMPALAM, THOMAS J, MD
TENTATIVE RULING:

Defendant Thomas J. Mampalam, M.D. brings a demurrer and motion to strike challenging plaintiff Duncan Mackenzie Miller's First Amended Complaint. The demurrer is **sustained with respect to the first and third causes of action**. The demurrer is **overruled** with respect to the second and fourth causes of action. The motion to strike is **granted with respect to attorneys fees**, as discussed below. Plaintiff has leave to file an amended complaint on or before February 23, 2026.

I. Background

This matter arises from a spinal surgery performed on plaintiff by Dr. Mampalam in 1999 after plaintiff injured his back while working in a restaurant. A few months after the surgery plaintiff began experiencing the same intense back pain that he felt before the surgery. Dr. Mampalam refused to acknowledge the severity of plaintiff's pain and told him the surgery had been a success, the pain was normal, and there was nothing more that could be done. Dr. Mampalam prescribed opioids and later discharged plaintiff as a patient in February 2002. Around the same time, plaintiff began treatment with pain specialist, defendant Kasra Amirdelfan, M.D., who diagnosed plaintiff with Failed Back Surgery Syndrome. Dr. Amirdelfan treated plaintiff for approximately 18 years. Plaintiff eventually consulted with another neurosurgeon who performed spinal fusion surgery in 2022 which resolved the back pain.

Plaintiff alleges defendants knew that plaintiff's spinal pain was due to Failed Back Surgery Syndrome and was not normal, but they never recommended spinal fusion surgery or referred plaintiff for a second opinion, thereby condemning plaintiff to suffer grievous emotional and physical pain for decades.

Plaintiff filed the original verified complaint in December 2022. Dr. Mampalam filed a verified answer on April 25, 2023. After being granted leave to amend, plaintiff filed a verified First Amended Complaint on September 29, 2025, alleging nine causes of action. The first five causes of action are alleged against Dr. Mampalam. They are: (1) Dependent Adult Abuse, (2) Intentional Misrepresentation, (3) Constructive Fraud, (4) Concealment, and (5) Negligence.

After efforts to meet and confer (see Declarations of Faith E. Wolinsky), Dr. Mampalam brought the present general demurrer to the first four causes of action, and a motion to strike allegations as to attorneys' fees, treble damages, and punitive damages. Plaintiff opposes both motions. Plaintiff includes a declaration by counsel with an attached letter, to which defendant objects on reply. The Court sustains the objections and has not considered the declaration for purposes of this ruling because on demurrer, only the allegations and facts subject to judicial notice may be considered.

II. Demurrer

A. Standard

The traditional rule is that "in testing a pleading against a demurrer the facts alleged ... are deemed to be true, however improbable they may be." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) All material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318, citations omitted.) The complaint is read as a whole and the parts in their context, considering matters which may be judicially noticed. (*Ibid.*; Code Civ. Proc. § 430.30(a).) Where a demurrer to a complaint is sustained, the burden of proving a reasonable possibility that the defect can be cured through amendment is on the plaintiff. (*Blank, supra*, at 318.)

B. Discussion

1. First C/A for Dependent Adult Abuse

Defendant demurs to the first cause of action based on plaintiff's failure to plead neglect under the Elder Abuse and Dependent Adult Civil Protection Act (Act). The Act provides remedies where a defendant is liable for physical abuse, neglect, or abandonment, and acted with

“recklessness, oppression, fraud, or malice in the commission of this abuse.” (Welf. & Inst. Code, §§ 15657; 15610.63 [defining physical abuse], 15610.57 [defining neglect], and 15610.05 [defining abandonment].) Neglect under the Act requires a caretaking or custodial relationship with the plaintiff. (See *Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, 152; (Welf. & Inst. Code, § 15610.57.) Defendant argues there was no such relationship with the plaintiff here.

In opposition to the demurrer, plaintiff argues that there was a custodial relationship because plaintiff “relied” on Dr. Mampalam for opioid prescriptions and Dr. Mampalam treated plaintiff for three years.

In pointing to the fact that Dr. Mampalam did not inform plaintiff he could seek spinal fusion surgery, plaintiff cites *Stewart v. Superior Court* (2017) 16 Cal.App.5th 87. In that case, the court held that held elder abuse could potentially be established where a hospital authorized a patient's pacemaker surgery over the patient's designee's objection and therefore deprived the patient of the right to consent to medical treatment. The facts here are distinguishable. Plaintiff does not assert any treatment imposed upon him without consent.

In the other case cited by plaintiff, *Winn v. Pioneer Medical Group, Inc.*, the heirs of a decedent brought an elder abuse claim against defendants, including a doctor, relating to outpatient care. (*Winn, supra*, 63 Cal.4th at 153.) Plaintiffs alleged that the doctor failed to perform a vascular exam on the decedent despite the doctor's finding that the decedent had peripheral vascular disease. (*Id.*) Over several months of continued out patient visits, the decedent's foot continued to become worse, and he was ultimately admitted to the hospital for gangrene. (*Id.*) Pioneer Medical Group demurred arguing they were not care custodians. The trial court sustained the demurrer on this ground, and the plaintiff appealed.

The appellate court affirmed, noting that the Legislature “did not intend[] the Act to apply whenever a doctor treats any elderly patient. Reading the act in such a manner would radically transform medical malpractice liability relative to the existing scheme.” The court further found that that defendants' treatment of the decedent at outpatient “clinics” operated by the defendants was intermittent and did not create a caretaking or custodial relationship between the decedent and the defendants. The court noted there were “[n]o allegations in the complaint support an inference that [decedent] relied on defendants in any way distinct from an able-bodied and fully competent adult's reliance on the advice and care of his or her medical providers.” (*Id.*)

The same logic applies in this case. There are no alleged facts that would support a finding that Dr. Mampalam provided ongoing caretaking or custodial care. The alleged care here includes mention of only a handful of encounters over a three year period. This is far less than that in *Winn*.

Plaintiff also argues Dr. Mampalam's conduct amounted to physical abuse, not just neglect. Plaintiff argues the FAC alleges Dr. Mampalam “caused unjustifiable physical pain by addicting Duncan Miller to opioids when curative surgery was available, subjecting him to years of unnecessary chronic pain and the physical suffering of opioid addiction and withdrawal.”

The Act defines physical abuse in Welfare & Institutions Code, § 15610.63. Subdivision (f) of the statutory definition includes:

Use of a physical or chemical restraint or psychotropic medication under any of the following conditions:

(1) For punishment.

(2) For a period beyond that for which the medication was ordered

pursuant to the instructions of a physician and surgeon licensed in the State of California, who is providing medical care to the elder or dependent adult at the time the instructions are given.

(3) For any purpose not authorized by the physician and surgeon.

(Welf. & Inst. Code, § 15610.63 (f).)

Nothing amounting to the above is alleged here against Dr. Mampalam. While plaintiff makes allegations that might arguably come within this definition against Dr. Mampalam's codefendant (see, e.g., FAC, ¶¶93), the facts as to Dr. Mampalam are merely that he prescribed opioids. (See, e.g., FAC, ¶¶19, 41, 43.)

As such, a dependent adult abuse claim must fail, and the Court sustains the demurrer to the First Cause of Action, with leave to amend.

2. Timeliness of the Fraud Causes of Action

Though not explicitly addressed by either side, a demurrer "will lie where the complaint has included allegations that clearly disclose some defense or bar to recovery." (*Stella v. Asset Management Consultants, Inc.* (2017) 8 Cal.App.5th 181, 191.)

Accordingly, the Court finds it necessary to engage with the timing of plaintiff's claims here. Code of Civil Procedure, § 340.5 provides the statute of limitations for medical negligence claims, which "shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." The timeframe during which a plaintiff may commence the action shall not exceed three years "unless tolled for any of the following: (1) upon proof of fraud, (2) intentional concealment, or (3) the presence of a foreign body [...]."

The current version of this section was enacted in 1975 as part of the Medical Injury Compensation Reform Act ("MICRA"). (*Guardian North Bay, Inc. v. Superior Court* (2001) 94 Cal.App.4th 963, 974.) MICRA is an "interrelated legislative scheme enacted to deal specifically with all medical malpractice claims." (*Ibid.*, citing *Young v. Haines* (1986) 41 Cal. 3d 883, 894.) Presumably, the legislative goal in amending § 340.5 [to reduce the maximum limitations period from four to three years] was to give insurers greater certainty about their liability for any given period of coverage, so that premiums could be set to cover costs." (*Guardian North Bay, Inc.*, *supra*, 94 Cal.App.4th at 974, citing *Young*, *supra*, 41 Cal. 3d 883, 900.) No tolling provision outside of MICRA can extend the three-year maximum time period that § 340.5 establishes. (*Belton v. Bowers Ambulance Serv.* (1999) 20 Cal.4th 928, 931.)

Keeping in mind this framework, the Court proceeds to the individual causes of action.

3. Second C/A for Intentional Misrepresentation

Dr. Mampalam demurs to plaintiff's intentional misrepresentation cause of action on the basis that it is conclusory and not pleaded with particularity. In California, fraud must be pled specifically; general and conclusory allegations do not suffice. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) The policy of liberal construction of the pleadings will therefore not ordinarily be invoked with respect to fraud. (*Ibid.*) This particularity requirement necessitates pleading facts which 'show how, when, where, to whom, and by what means the representations were tendered.' (*Ibid.*)

To plead fraud, plaintiff must state (1) a misrepresentation; (2) knowledge of falsity (or

‘scienter’); (3) intent to defraud, i.e., to induce reliance; (4) justifiable reliance; and (5) resulting damage. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974, internal quotation marks omitted; see also Civ. Code, §§ 1709-1710.) “[F]alse representations made recklessly and without regard for their truth in order to induce action by another are the equivalent of misrepresentations knowingly and intentionally uttered.” (*Engalla, supra*, 15 Cal.4th at 974.)

According to the FAC, Dr. Mampalam falsely represented that the surgery he performed had been successful and that plaintiff’s pain was “normal,” knowing the representations “were false at the time that he made them or that he made these representations recklessly and without regard for their truth.” (FAC, ¶132.) Plaintiff also alleges that Dr. Mampalam “intended” for plaintiff to rely on his misrepresentations, and that plaintiff did rely on them. (FAC, ¶¶133, 35.) With respect to specificity, the opposition points out that the FAC states who made the representation (Dr. Mampalam), to whom (plaintiff), what was represented (that the surgery was a success, plaintiff’s pain was normal, and was actually Failed Back Surgery Syndrome), and when the misrepresentations were made (June 3, 1999, February 25, 2002, and during each consultation over the three-year treatment period). (See FAC ¶¶18, 20, 32, 51, and 54.)

This is sufficient at the pleading stage. The demurrer to the second cause of action is overruled.

4. Third C/A for Constructive Fraud

Dr. Mampalam demurs to plaintiff’s constructive fraud cause of action on the basis that plaintiff should not be permitted to circumvent MICRA by avoiding the actual cause of action which is medical negligence, and because defendant asserts no California court has recognized a cause of action for constructive fraud arising in similar circumstances.

One court discussed constructive fraud as one and the same cause of action as a “breach of fiduciary duty,” noting that pursuant to this theory, representation and falsity are absent. This is because “[t]he fraud consists of the breach of the fiduciary duty of disclosure of relevant matters arising from the relationship, and this must be alleged.” (*Byrum v. Brand* (1990) 219 Cal.App.3d 926, 937-938.)

As constructive fraud is more lenient than fraud, and in this case, at least, duplicates one for medical negligence under MICRA, the cause of action would not, like actual fraud, function to toll the limitations period of Code of Civil Procedure, § 340.5. The Court declines to further speculate as to whether ALL causes of action for constructive fraud duplicate a medical negligence cause of action. Here, we need only determine that there was no tolling of the statute of limitations. Plaintiff’s allegedly unsuccessful surgery was in 1999. He ceased being a patient of Dr. Mampalam on February 25, 2002.

The general rule for accrual of a cause of action is when the cause of action is complete with all of its elements. (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 397, citations omitted.) Absent tolling, the statute of limitations for medical negligence is not more than three years, as mentioned above. The statute of limitations for constructive fraud is three years. (*City of Vista v. Robert Thomas Sec.* (2000) 84 Cal.App.4th 882, 889, citing Code Civ. Proc., § 338 (d) [statute of limitations for fraud].)

Here, at the time plaintiff brought this action (December 2022) more than 20 years had elapsed from the time of harm. Surgery was in January 1999, plaintiff’s pain commenced no later than June 1999, and Dr. Mampalam made any representations no later than February 2002. Where the statute of limitations poses a bar on the face of the complaint, as here, plaintiff must allege facts that

would get around that bar. Plaintiff has failed to do so with respect to the constructive fraud / medical negligence (which are equivalent here). The demurrer to this cause of action is sustained with leave to amend.

5. Fourth C/A for Concealment

Dr. Mampalam demurs to plaintiff's concealment cause of action on the basis that it is not sufficiently specific.

The elements of fraud by concealment are: (1) defendant's concealment or suppression of a material fact; (2) defendant was under a duty to disclose the fact to the plaintiff; (3) defendant intentionally concealed or suppressed the fact with the intent to defraud plaintiff; (4) plaintiff was unaware of the fact and would not have acted as plaintiff did had plaintiff known of the concealed or suppressed fact; and (5) plaintiff was damaged as a result of the concealment or suppression. (*Knutson v. Foster* (2018) 25 Cal.App.5th 1075, 1091.)

Despite the general requirements regarding pleading fraud with specificity, the Court notes that in concealment claims, less particularity is required. This is because the facts presumably lie within the knowledge of the defendant. This principle is applicable here. From the nature of the allegations, and assuming their truth as we must on demurrer, Dr. Mampalam would necessarily possess full information concerning the facts. (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384, citations omitted.)

Plaintiff alleges Dr. Mampalam intentionally failed to disclose (1) that plaintiff's back pain was not normal and was actually Failed Back Surgery Syndrome, (2) that plaintiff's pain was not normal, and (3) that spinal fusion was available. (FAC, ¶¶51-54.) Plaintiff has alleged that the concealment was done with the intent to deceive plaintiff, and that plaintiff could not know the real facts because he had no formal medical training. (FAC ¶¶53, 55-56.) Plaintiff further pleads reliance and harm in that he would have acted differently with respect to his treatment if he had known the true facts. (FAC ¶¶57-58.)

This is sufficient. The demurrer to the fourth cause of action is overruled.

III. Motion to Strike

A. Standard

The Court may, in its discretion and upon a motion to strike by defendant: (a) strike out any irrelevant, false, or improper matter inserted in any pleading, or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., §§ 435-436.) The matter must appear on the face of the complaint or be subject to judicial notice. (Code Civ. Proc., § 437.)

B. Discussion

1.Damages Based on Dependent Adult Abuse

To the extent items of damages are related to the first cause of action, the demurrer to that cause of action was sustained and therefore, the motion to strike these items is denied as moot. (See Items 2 and 9 in the Notice of Motion relating to "Treble Damages").

2.Punitive Damages

The motion is denied with respect to the punitive / exemplary damages allegations listed in

the Notice of Motion. The plaintiff successfully alleges fraud, which is one of the statutory bases for punitive / exemplary damages. (Civ. Code, § 3294 (a) [“where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant”].)

3. Attorneys’ Fees

The motion is granted with respect to the attorneys’ fees allegations listed in the Notice of Motion. There is no contract here and no successfully asserted statutory claim here that would entitle plaintiff to his attorneys’ fees.

3. 9:00 AM CASE NUMBER: C22-02691
CASE NAME: DUNCAN MILLER VS. THOMAS MAMPALAM, MD
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MAMPALAM, THOMAS J, MD
TENTATIVE RULING:

Please see Line 2.

4. 9:00 AM CASE NUMBER: C23-02087
CASE NAME: JOHN BROSNAN VS. GEICO INDEMNITY COMPANY
***HEARING ON MOTION IN RE: RENTAL VEHICLE**
FILED BY:
TENTATIVE RULING:

Before the Court is a motion by plaintiff John Brosnan for a rental vehicle. For the reasons set forth, the motion is **denied**.

Background

Plaintiff filed his complaint initiating this action on August 22, 2023. His complaint alleged his claims arose out of a motor vehicle accident that allegedly occurred on August 3, 2022 in which the other vehicle involved in the accident was insured by defendant Geico Indemnity Company. (Compl. 1st and 2nd C/As.) Geico demurred to the Complaint on the ground Plaintiff had no direct claim against Geico. The Court sustained Geico's unopposed demurrer without leave to amend. (2/23/2024 Order.) On October 21, 2024, defendant Garcia filed a demurrer to the Complaint which was set for hearing on February 21, 2025. The Court sustained Garcia's demurrer without leave to amend on statute of limitations grounds. (Min. Order 2/21/2025.)

On November 4, 2025, Plaintiff filed the current motion for a rental vehicle. Garcia filed an opposition to the motion.

Legal Authority and Analysis

Garcia argues the motion should be denied in part because demurrers to Plaintiff's complaint were sustained as to both named defendants. Garcia's recent *ex parte* application for an order dismissing the action under Code of Civil Procedure section 581 was denied on the grounds stated in the order.